

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE CHEYENNE BOARD OF PUBLIC UTILITIES TO EXECUTE A GRANT AGREEMENT WITH THE WYOMING OFFICE OF HOMELAND SECURITY FOR FEDERAL EMERGENCY MANAGEMENT AGENCY BUILDING RESILIENT INFRASTRUCTURE AND COMMUNITIES FUNDING AND TO AUTHORIZE THE DIRECTOR OF THE BOARD TO EXECUTE ALL RELATED DOCUMENTS."

WHEREAS, Wyoming Statute §§ 15-7-401 through 15-7-412 provides for cities or towns to establish a Board of Public Utilities (BOPU) to manage, operate, maintain, and control municipal waterworks, sanitary sewer system and sewage disposal plants;

WHEREAS, Cheyenne City Code, Section 2.68.010, establishes that BOPU has exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities;

WHEREAS, BOPU has been awarded a grant pursuant to an agreement with the Wyoming Office of Homeland Security through the U.S. Department of Homeland Security Federal Emergency Management Agency Fiscal Year 2023 Building Resilient Infrastructure and Communities (BRIC Grant);

WHEREAS, the BRIC Grant will allow BOPU to complete a drought mitigation alternative analysis (Project);

WHEREAS, the Project cost estimate for analysis and other administrative costs is \$946,575.00, which includes engineering, consulting and miscellaneous costs;

WHEREAS, the Project meets the criteria and has been awarded a grant in the amount of \$721,200.00;

WHEREAS, BOPU has secured \$88,587.19 from the Governor's Infrastructure Matching Funds towards the Project that will serve as matching funds;

WHEREAS, BOPU has budgeted \$136,787.81 towards the Project that will serve as matching funds;

WHEREAS, the awarded BRIC Grant funds shall only be used to cover costs incurred during the period beginning on January 16, 2025, and ending on December 15, 2027; and

WHEREAS, BOPU recognizes that the Project is necessary and that it is essential to ensure reliable drinking water delivery.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that an agreement be signed between the City of Cheyenne Board of Public Utilities and Wyoming Office of Homeland Security for a grant through the U.S. Department of Homeland Security Federal Emergency Management Agency Fiscal Year 2023 Building Resilient Infrastructure and Communities for an amount not to exceed \$721,200.00 for project costs; and

BE IT FURTHER RESOLVED, that the Director of the Board of Public Utilities is hereby designated to be the authorized representative of the City of Cheyenne to act on behalf of the City of Cheyenne in all matters related to this agreement and related documents, including any amendments to the Grant Agreement.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

**AGREEMENT BETWEEN
WYOMING OFFICE OF HOMELAND SECURITY
AND
CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES**

Grant Award for U.S. Department of Homeland Security (DHS) Federal Emergency Management Agency (FEMA) Fiscal Year 2023 Building Resilient Infrastructure and Communities (BRIC).

Subrecipient:	City of Cheyenne Board of Public Utilities
UEI #:	QMBKWWLCRTJ4
FEMA Grant ID:	EMD-2023-BR-001
FEMA Subgrant ID:	EMD-2023-BR-001-0003
Federal Award Date:	January 16, 2025
WOHS Grant ID:	23-BRIC-BOPU-MU-BOP1
ALN:	97.047
Federal Award Amount:	\$721,200.00
Subrecipient Match Amount:	\$225,375.00
Total Amount:	\$946,575.00
Period of Performance:	January 16, 2025 through December 15, 2027

1. **Parties.** The parties to this Agreement are the Wyoming Office of Homeland Security (Agency), whose address is: 5500 Bishop Blvd., Cheyenne, WY 82002, and the City of Cheyenne Board of Public Utilities (Subrecipient), whose address is: 2416 Snyder Avenue, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Subrecipient shall complete and implement the Drought Mitigation Alternatives Analysis Project as described in Attachment A, Subgrant Project Scoping Application, which is attached to and incorporated into this Agreement by this reference. Funding allocated under this Agreement is not for the purpose of research and development as defined by 2 CFR Part 200.87.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The Period of Performance of the Agreement is from January 16, 2025 through December 15, 2027. All services shall be completed during the Period of Performance.
4. **Payment.**
 - A. The Agency agrees to pay the Subrecipient for the services described in Section 5 below. Total payment under this Agreement shall not exceed the federal award amount of seven hundred twenty one thousand, two hundred dollars and zero cents (\$721,200.00). Payment shall be made following receipt of Subrecipient's reimbursement request with attached backup documentation including invoices and proof of payment. Payment shall be made within forty-five (45) days after

submission of invoice pursuant to Wyo. Stat. § 16-6-602. Subrecipient shall submit invoices in sufficient detail to ensure that payments may be made in conformance with this Agreement. Subrecipient shall submit all invoices within forty-five (45) days after the term of this Agreement.

- B.** No payment shall be made for work performed outside the Period of Performance of this Agreement, unless pre-award costs were approved as part of the Subgrant Project Scoping Application. Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of Agency.
- C.** Except as otherwise provided in this Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Agreement.

5. Responsibilities of Subrecipient. The Subrecipient agrees to:

- A.** Perform mitigation activities as described in Attachment A, Subgrant Project Scoping Application.
- B.** Comply with the terms and conditions as described in Attachment B, Agreement Articles, which is attached to and incorporated into this Agreement by this reference.
- C.** Comply with the terms and conditions as described in Attachment C, Record of Environmental Consideration (REC), which is attached to and incorporated into this Agreement by this reference.
- D.** Submit quarterly reports outlining the project activity and current project status by the 20th day of the month following each calendar quarter (Jan 20, Apr 20, July 20, Oct 20) beginning at the start of the Period of Performance.
- E.** Comply with the 2023 Building Resilient Infrastructure and Communities (BRIC) Notice of Funding Opportunity (NOFO) and the Hazard Mitigation Assistance (HMA) Guidance to implement this Agreement, and agree that all use of funds under this Agreement will be in accordance with the 2023 BRIC NOFO and the HMA Guidance.

6. Responsibilities of Agency. The Agency agrees to:

- A.** Pay Subrecipient in accordance with Section 4 above.
- B.** Be available to provide necessary and feasible technical assistance, which may be reasonably required by Subrecipient.

- C. Notify Subrecipient of information and updates received from the Federal Emergency Management Agency (FEMA) or other federal agencies which may affect or otherwise restrict the availability of funds awarded to Subrecipient herein.

7. **Special Provisions.**

- A. **Assumption of Risk.** The Subrecipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with state or federal requirements. The Agency shall notify the Subrecipient of any state or federal determination of noncompliance.
- B. **Environmental Policy Acts.** Subrecipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- C. **Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
 - (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- D. **Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, Agency may, at its discretion, terminate this Agreement without liability to Agency, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- E. **Limitations on Lobbying Activities.** By signing this Agreement, Subrecipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by Subrecipient or its subcontractors in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, Agreement, cooperative agreement, or loan.
- F. **Monitoring Activities.** Agency shall have the right to monitor all activities related

to this Agreement that are performed by Subrecipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.

- G. Nondiscrimination.** The Subrecipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement. Federal law requires the Subrecipient to include all relevant special provisions of this Agreement in every subcontract awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subcontractor.
- H. No Finder's Fees.** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- I. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Subrecipient and related to the services and work to be performed under this Agreement, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval of Agency.
- J. Suspension and Debarment.** By signing this Agreement, Subrecipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Subrecipient agrees to notify Agency by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement.
- K. Administration of Federal Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by Agency.

- L. Copyright License and Patent Rights.** Subrecipient acknowledges that federal grantor, the State of Wyoming, and Agency reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which Subrecipient purchases ownership using funds awarded under this Agreement. Subrecipient must consult with Agency regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.
- M. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount in excess of the amount set forth in 2 CFR Part 200, Subpart F in federal awards during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, Subrecipient shall provide one (1) copy of the audit report to Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.
- N. Non-Supplanting Certification.** Subrecipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. Subrecipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- O. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of Agency. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to Agency.
- P. Applicability of Appendix II to 2 CFR Part 200.** This Agreement has been funded, in whole or in part, with an Award of Federal funds and is bound by the federal Agreement provisions required by the Uniform Guidance Appendix II of 2 CFR Part 200 (the Federal Agreement Provisions), incorporated herein by this reference. In the event of a conflict between the Special Provisions section of this Agreement, or any attachments or exhibits incorporated herein, and the Federal Agreement Provisions, the Federal Agreement Provisions shall control. Failure to comply with the Federal Agreement Provisions shall constitute an event of default under this Agreement. If such a default remains uncured five (5) calendar days following the termination of a thirty (30) day prior written notice period, the Agency may terminate this Agreement. This remedy will be in addition to any other remedy available to the State of Wyoming and the Agency under this Agreement, at law, or in equity.

8. General Provisions.

- A. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. **Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. **Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.
- E. **Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. **Award of Related Agreements.** The Agency may award supplemental or successor Agreements for work related to this Agreement or may award Agreements to other Subrecipients for work related to this Agreement. The Subrecipient shall cooperate fully with other Subrecipients and the Agency in all such cases.

- G. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement shall be kept confidential by the Subrecipient unless written permission is granted by the Agency for its release. If and when Subrecipient receives a request for information subject to this Agreement, Subrecipient shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- I. Entirety of Agreement.** This Agreement, consisting of eleven (11) pages; Attachment A, Subgrant Project Scoping Application, consisting of sixteen (16) page(s); Attachment B, Agreement Articles, consisting of fourteen (14) pages; Attachment C, Record of Environmental Consideration (REC), consisting of four (4) pages; and the Federal Agreement Provisions, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- J. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Subrecipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by the Agency and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.

- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Subrecipient.** The Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Agreement.
- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided below:

Contact for the Agency:

Ashley Paulsrud
Grants/Finance Section Chief
5500 Bishop Boulevard
Cheyenne, WY 82002
307-777-4907
Ashley.paulsrud@wyo.gov

With a copy to:

Lynn Budd
Director, Wyoming Office of Homeland Security
5500 Bishop Boulevard
Cheyenne, WY 82002
307-777-8511
Lynn.budd@wyo.gov

- P. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and documents to the Agency in a useable format. In the case of electronic

transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.

- Q. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- R. Insurance Requirement.** Subrecipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency.
- S. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- T. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Subrecipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- U. Taxes.** The Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- V. Termination of Agreement.** This Agreement may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Agreement may be terminated by the Agency immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Agreement.
- W. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this

Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.

- X. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Y. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- Z. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- AA. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

AGENCY:

Wyoming Office of Homeland Security

Lynn Budd, Director

Date

SUBRECIPIENT:

City of Cheyenne Board of Public Utilities

Brad Brooks, Director

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Jodi A. Darrough # 246563
Jodi A. Darrough, Senior Assistant Attorney General

2-14-25
Date

Subapplicant information

Attachment A - Subgrant Project Scoping Application

Name of federal agency

FEMA

Type of submission

Application

CHEYENNE CELTIC MUSICAL ARTS FESTIVAL

2416 SNYDER AVE

CHEYENNE, WY 82001 United States

State	UEI-EFT	DUNS #	EIN #
WY	QMBKWWLCRTJ4	153925201	836000043

Subapplicant type

Local Government

Is the subapplicant subject to review by Executive Order 12372 Process?

No - Not covered

Is the subapplicant delinquent on any federal debt?

No

Contact information

Subrecipient Authorized Representative (SAR)

Brad Bowen	Primary phone	Mailing address
bbowen@cheyennebopu.org		

Point(s) of contact

Billie Knifong Accounting Supervisor	Primary phone 3076376467 Work	Additional phones 3076376467 Work	Mailing address 2416 Snyder Ave. Cheyenne WY 82001
bknifong@cheyennebopu.org	Fax		

Community

Please provide the following information. If the Congressional district number for your community does not display correctly, please contact your State NFIP coordinator.

Add Communities

Please find the community(ies) that will benefit from this mitigation activity by clicking on the Find communities button. If needed, modify the Congressional District number for each community by entering the updated number under the U.S. Congressional District column for that community. When finished, click the Continue button. NOTE: You should also notify your State NFIP coordinator so that the updated U.S. Congressional District number can be updated in the Community Information System (CIS) database.

Community name	County code	CID number	CRS community	CRS rating	U.S. Congressional District
CHEYENNE, CITY OF	21	560030	Y	7	1,2

Please provide any additional comments below (optional).

The Board of Public Utilities (BOPU) provides sewer services for residential, commercial, and industrial customers within a service area boundary that covers approximately 130 square miles (see Figure 1 attached). BOPU's service area includes all citizens of Cheyenne, military personnel stationed at the Frances E. Warren

Air Force Base, residents in South Cheyenne Water and Sewer District, as well as some rural customers in Laramie County. This proposed project will provide community resiliency by ensuring uninterrupted drinking water supply for customers during drought. According to current data from the United States Census Bureau, the median household income in Cheyenne is \$74,989 with 8.5% living in poverty. Four Justice 40 census tracts in BOPU's service area that affect a sub-population of 20,642; see figure "BOPU Service Area Justice 40 Census Tracts" and associated features files that were returned from a query of the Grant Equity Threshold Tool. Historical drought conditions in Wyoming and climate data associated with drought in the hydrologic basins that supply Cheyenne's water are attached.

Attachments

Filename	Date uploaded	Uploaded by	Label	Description	Action
FEMA CRCI Data for BOPU Service Area.png	01/29/2024	sbargsten@cheyennebopu.org	Community Attachments	CRCI data in BOPU's service area from a query of FEMA's Resilience Analysis and Planning Tool	
Figure 1. City of Cheyenne.jpg	01/09/2024	sbargsten@cheyennebopu.org	Community Attachments	Figure 1 shows the municipal boundary of Cheyenne and BOPU's service area	
features CEJST.csv	01/11/2024	sbargsten@cheyennebopu.org	Community Attachments	CEJST features for BOPU's service area from a query of the Grant Equity Threshold	
BOPU Service Area Justice 40 Census Tracts.png	01/11/2024	sbargsten@cheyennebopu.org	Community Attachments	Justice 40 census tracts in BOPU's service area	

Please provide your plan information below.

Please provide plan detail

Plan name	Plan type	Plan approval date
Wyoming Region 7 Hazard Mitigation Plan 2023 update	Local Multijurisdictional Multi-Hazard Mitigation Plan	02/02/2023

On March 2, 2023, the contract between Hazard Mitigation Office of the
 and City of Cheyenne Board of Public Utilities

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Proposed activity description
Drought mitigation

Please provide any additional comments below (optional).

Wyoming Region 7 Hazard Mitigation Plan - 2023 Update,
Appendix B: Laramie County, Section 3.6 Drought (pages B27 -
B29)

Attachments

Filename	Date uploaded	Uploaded by	Label	Description	Action
WY Reg 7 HMP - final 20230515.pdf	01/11/2024	sbargsten@cheyennebopu.org	Mitigation Plan Attachments	No description given.	

Scope of work

The project Scope of Work (SOW) identifies the eligible activity, describes what will be accomplished and explains how the mitigation activity will be implemented. The mitigation activity must be described in sufficient detail to verify the cost estimate. All activities for which funding is requested must be identified in the SOW prior to the close of the application period. FEMA has different requirements for project, planning and management cost SOWs.

Subapplication title (include type of activity and location)Drought Mitigation Alternatives Analysis

Activities

Primary activity type	Develop or conduct engineering, environmental, feasibility and/or benefit cost analyses
Secondary activity type (Optional)	Activities supporting development of applications
Tertiary activity type (Optional)	Conduct meetings, outreach and coordination with subapplicants and community residents
Geographic areas description	City of Cheyenne in Laramie County, Wyoming; Figure 1 (attached) includes Cheyenne municipal boundaries and BOPU's service area

Community lifelines

Attachment A to the Contract between Wyoming Office of Homeland Security
and City of Cheyenne Board of Public Utilities
Primary community lifelineFood, water, shelter

Secondary community lifeline (optional)

Hazard sources

Primary hazard source

Drought

Secondary hazard source (optional)

Infrastructure failure

Tertiary hazard source (optional)

Biological incident

How will the mitigation activity be implemented?

BOPU will oversee a contractor that conducts the proposed study and alternatives analysis. Similarly, BOPU will oversee a contractor to implement the mitigation activity.

What is the scope of work of the proposal? Will it result in a complete project application for future funding opportunities?

The problem is identifying the most viable solution to proactively mitigate impacts from drought. The City of Cheyenne (City) relies on water from three hydrologic basins, including 7,000 acre-feet per year of water from the Colorado River system. As pressures on the Colorado River continue to mount and climate changes persist or worsen, Cheyenne is at risk of facing impacts of drought in all its water supply basins and potential loss of junior water rights through Colorado River curtailment. As a result, BOPU would not be able to meet current municipal water demand, let alone support growth. BOPU will develop a study of two drought mitigation activities that will culminate in an alternatives analysis. BOPU will hire and oversee a contractor that will conduct an evaluation of drought and hydraulic conditions as it relates to the hydraulic basins that supply Cheyenne's potable water, perform a Benefit-Cost Analysis, and develop preliminary designs. The selected drought mitigation alternative will maximize use of existing water rights held by the City in the Crow Creek watershed. The outcome of this project will support application for future funding opportunities. The surface water blending study will focus on regulatory requirements for water quality and an appropriate blending ratio with this new source water for potable water delivered to residential, commercial, and industrial customers in BOPU's service area, which includes Cheyenne, FE Warren Air Force Base, and portions of Laramie County. Under the Safe Drinking Water Act, specifically the Lead and Copper Rule, BOPU is required to conduct a corrosion control treatment study to protect against metals leaching from distribution, service, and customer piping and fixtures into drinking water. This new water supply can be delivered to the treatment plant through existing mains and valves, but only after the study is conducted and demonstrated that treated water will meet EPA standards. If this solution is determined feasible, the study will also inform design decisions regarding

modification of water treatment processes (e.g., disinfection system) and any infrastructure changes that might be needed. BOPU has invested 75 hours of staff time for initial water quality sampling, but a consultant will be needed to complete the project activities detailed below.

- Assess water quality from Lower North Crow Reservoir, South Crow Reservoir, and Casper aquifer
- Evaluate potential blend ratios for surface water sources in accordance with Safe Drinking Water Act requirements and Sherard Water Treatment Plant treatment processes
- Model blended water quality at different ratios using water from Crystal Reservoir, South Crow Reservoir, and Lower North Crow Reservoir
- Identify potential Crystal Reservoir and Lower North Fork Crow Creek/South Fork Crow Creek/Casper aquifer blends
- Conduct bench-scale blending tests to simulate incoming raw water quality
- Evaluate raw water quality to identify breakpoint blend ratios
- Pilot test treatment of identified blend ratios
- Utilize an existing pilot plant to treat selected blend ratios with chlorine disinfection, including evaluation of chlorine gas and sodium hypochlorite processes
- Conduct bench-scale blending tests with water from the pilot plant and groundwater blend to simulate filtered water quality
- Evaluate finished water quality to determine acceptable blend ratios
- Conduct coupon test on recommended blend ratios
- Utilize the pilot plant (with hypochlorite disinfection and proposed corrosion control methods) to produce water at the recommended surface water blend ratios and groundwater blend to simulate final drinking water quality
- Conduct coupon test on final drinking water quality to simulate interaction with piping materials
- Identify target corrosion control treatment parameters, such as pH and alkalinity, based on water quality and existing treatment plant processes
- Evaluate final drinking water quality

This alternative would potentially provide an additional firm yield of 1,000 acre-feet per year, assuming average hydrologic conditions. Initial data collected suggests favorable water quality that is suitable for potable treatment and use. Prior to 2002, this water was a source for potable use. Another alternative includes expansion of the existing water reuse distribution system by converting the lakes (i.e., Absarraca, Kiwanis, and Sloans) to Class A recycled water. The lakes are owned by the City and filled with stormwater and raw water from surface water supplies. Historically, the water in the lakes has been used for recreation and landscape irrigation. 600 acre-feet of raw water that would otherwise fill the lakes would be diverted to the water treatment plant and delivered to Cheyenne to meet potable demand. This solution was presented in the 2019 Final Report: Reclaimed Water Reuse Study. BOPU is currently under contract with a consultant for the first phase of a feasibility study to identify regulatory requirements, involve stakeholders, and assess potential risks to human health and the environment associated with exposures to recycled water in the lakes. Initial activities include work plan development, regulator outreach, public polling, water quality sampling, and data evaluation with a budget of \$80,000. Based on the outcome of the first phase, additional activities (detailed below) may be needed to complete the study

and make a feasibility determination whether to proceed with design and construction. This alternative would potentially save 600 acre-feet per year of water that can be treated for potable use. Based on initial outreach and data collection, it is looking favorable. • Collect and analyze samples from the lakes and recycled water system • Lake bathymetry and flow monitoring • Lake modeling • Human health and ecological risk assessment, using data from the lakes and recycled water system • Follow up with stakeholders and perform additional regulatory review • Conduct public outreach via interviews, listening session, and public meeting(s) • Develop informational materials including a fact sheet, frequently asked questions, and media statement • Compile a study report with recommendations

Who will manage and complete the mitigation activity?	BOPU will manage and complete the mitigation activity through the assistance of a contractor.
What are you doing to consider other risks in the project area?	As a steward of Cheyenne's water rights, BOPU works to protect water quality and ensure maximum beneficial use of the water supply. There are ongoing efforts to address other risks in the project area that affect water supply that includes updates to aging infrastructure, measures to mitigate flood risk for the water reclamation facilities, and sufficient cybersecurity measures for the utility.
Is there an estimate for when the mitigation activity will take place?	Upon completion of this project, BOPU will prepare applications for any and all applicable funding sources, including FEMA grants. If funding is awarded, BOPU will initiate the contracting process as soon as the funding contract is final.
What alternatives will be considered?	1) Surface water blending 2) Lake recycled water conversion or explore other local storage options 3) Evaluate conveyance capacity of South Fork Crow Creek, upstream of existing South Crow Reservoir 4) Expand recycled water system per recommendations of 2019 HDR report (attached) 4) No action, if required by FEMA
Do activities being considered align with hazard mitigation plan?	Yes, these drought mitigation activities will ensure maximum beneficial use of Cheyenne's existing water supplies and provide community resiliency to avoid interrupted delivery of safe drinking water to BOPU's customers during drought.
Additional comments (optional)	

Attachments

Filename	Date uploaded	Uploaded by	Label	Description	Action
20240206 BRIC Eligibility Criteria BOPU Application 2 of 2.pdf	02/06/2024	sbargsten@cheyennebopu.org	Scope of Work Attachments	Crosswalk of eligibility criteria from the notice of	
Attachment A to the Contract between Wyoming Office of Homeland Security and City of Cheyenne Board of Public Utilities					
8 of 16					

Filename	Date uploaded	Uploaded by	Label	Description	Action
				funding opportunity as it relates to this project.	
Lake Water Conversion Study Work Plan_Cheyenne BOPU_Final 010224.pdf	01/09/2024	sbargsten@cheyennebopu.org	Scope of Work Attachments	Lake Water Conversion Study Work Plan, Cheyenne Board of Public Utilities, January 2, 2024	
BOPU Reuse Final Report-FINAL.pdf	01/16/2024	sbargsten@cheyennebopu.org	Scope of Work Attachments	Final Report: Reclaimed Water Reuse Study, Cheyenne Board of Public Utilities, January 11, 2019	
Figure 1. City of Cheyenne.jpg	01/16/2024	sbargsten@cheyennebopu.org	Scope of Work Attachments	Figure 1; Cheyenne municipal boundary and BOPU's service area	
20230427 Cheyenne North Crow evaluation_Final.pdf	01/11/2024	sbargsten@cheyennebopu.org	Scope of Work Attachments	Surface Water Blending Study, Scope of Work, Cheyenne Board of Public Utilities, April 24, 2023	

Schedule

Specify the work schedule for the mitigation activities.

Add tasks to the schedule

Please include all tasks necessary to implement this mitigation activity; include descriptions and estimated time frames.

Task Name Surface Water Blending Study	Start Month 01 Task Duration (in Months) 24 months Task Description NOTE: both studies can be conducted concurrently. • Assess water quality from Lower North Crow Reservoir and South Crow Reservoir • Evaluate potential blend ratios for surface water sources in accordance with Safe Drinking Water Act requirements and Sherard Water Treatment Plant treatment processes • Model blended water quality at different ratios using water from Crystal Reservoir, South Crow Reservoir, and Lower North Crow Reservoir • Identify potential Crystal and Lower North Crow/South Crow blends • Conduct bench-scale blending tests to simulate incoming raw water quality • Evaluate raw water quality to identify breakpoint blend ratios • Pilot test treatment of identified blend ratios • Utilize an existing pilot plant to treat selected blend ratios with chlorine disinfection, including evaluation of chlorine gas and sodium hypochlorite processes • Conduct bench-scale blending tests with water from the pilot plant and 15% blend of ground water to simulate filtered water quality • Evaluate finished water quality to determine acceptable blend ratios • Conduct coupon test on recommended blend ratios • Utilize the pilot plant (with hypochlorite disinfection and proposed corrosion control methods) to produce water at the recommended surface water blend ratios and blend with 15% ground water to simulate final drinking water quality • Conduct coupon test on final drinking water quality to simulate interaction with piping materials • Identify target corrosion control treatment parameters, such as pH and alkalinity, based on water quality and existing treatment plant processes • Evaluate final drinking water quality
Task Name Lake Recycled Water Conversion Study	Start Month 01 Task Duration (in Months) 18 months Task Description NOTE: both studies can be conducted concurrently.
Task Name Alternatives Evaluation	Start Month 01 Task Duration (in Months) 6 months Task Description Based on outcomes of the proposed studies, conduct a benefit-cost analysis and determine the most favorable alternative

Attachment A to the Contract between Wyoming Office of Homeland Security and City of Cheyenne Board of Public Utilities

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Proposed project start and end dates

Start Date	2024-07-01
End Date	2026-12-31

Budget

Budget cost estimate and management cost (optional) should directly link to your scope of work and work schedule. You must add at least one item(s) greater than \$0 for your cost estimate. Once you have added item(s) for your cost estimate, you may then add the item(s) for management cost (optional). As necessary, please adjust your federal/non-federal cost shares and add the non-federal funding source(s) you are planning to use this project. Once you have completed this section, please click the Continue button at the bottom of this page to navigate to the next section.

Add budget cost types and item(s)

Click the Add cost type button below to add cost type cost estimate and then click the Add item(s) button to add the item(s) for the cost estimate. After adding items to your cost estimate, you may then select Add cost type button again to add management costs (optional) and applicable items.

Grand total: \$1,147,890.00

Budget type: Non construction

►	Cost type: Cost estimate	\$1,147,890.00
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Program income (optional)

Cost share

Cost share or matching means the portion of project costs not paid by federal funds.

Proposed federal vs. non-federal funding shares

Hazard mitigation assistance (HMA) funds may be used to pay up to 75% federal share of the eligible activity costs. Building Resilient Infrastructure and Communities (BRIC), Economically Disadvantaged Rural Communities (EDRCs) and Community Disaster Resilience Zones (CDRZs) may be eligible for up to 90% federal share. Flood Mitigation Assistance (FMA) and severe repetitive loss (SRL) properties may be eligible for up to 100% federal share. Repetitive loss (RL) properties may be eligible for up to 90% federal share.

Cost estimate

Is this an Economically Disadvantaged Rural Community or Community Disaster Resilience Zone? Attachment A to the Contract between Wyoming Office of Homeland Security and City of Cheyenne Board of Public Utilities This determines your federal/non-		% Percentage	\$ Dollar amount
	Proposed federal share	75.00	860917.50

federal share ratio. No	Proposed non-federal share	25.00	286972.50
			Based on total budget cost: \$1,147,890.00

Non-federal funding sources here

That portion of the total costs of the program provided by the non-federal entity in the form of in-kind donations or cash match received from third parties or contributed by the agency. In-kind contributions must be provided and cash expended during the project period along with federal funds to satisfy the matching requirements.

Funding source	% Non-federal share by source	Funding amount
► Funding source: General Budget	100.00%	\$286,972.50

Additional comments.

Please note that Wyoming has not been fully evaluated/inventoried with respect to Community Disaster Resilience Zones.

Attachments

Filename	Date uploaded	Uploaded by	Label	Description	Action
20231208 Estimated Costs for Blending Study.pdf	01/11/2024	sbargsten@cheyennebopu.org	Budget Attachments	No description given.	
20240129 Estimated Costs for Lake Study.pdf	01/29/2024	sbargsten@cheyennebopu.org	Budget Attachments	No description given.	

Cost-effectiveness

How was cost-effectiveness determined for this project?

- ☒
Not applicable
- Please explain why this project is not applicable.

This project is comprised of two studies and an alternatives analysis. The costs to implement drought mitigation cannot be estimated until this project is complete. Therefore, benefit-cost analysis will be completed after this project is complete.

Attachments

Filename	Date uploaded	Uploaded by	Label	Description	Action
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Evaluation

Is the applicant participating in the Community Rating System (CRS) ?	Yes
Select rating.	7
Is the applicant a Cooperating Technical Partner (CTP) ?	Yes
Was this application generated from a previous FEMA HMA Advance Assistance or Project Scoping award or any other federal grant award, or the subapplicant is a past recipient of Building Resilient Infrastructure and Communities (BRIC) non-financial Direct Technical Assistance?	No
Has the applicant adopted building codes consistent with the international codes ?	Yes
Year of building code	2021
Please provide the building code.	International Residential, Building, and Fire Codes
Have the applicant's building codes been assessed on the Building Code Effectiveness Grading Schedule (BCEGS) ?	Yes
Select rating.	5
Describe involvement of partners to enhance the mitigation activity outcome.	There are no partners identified for this proposed project.
Additional comments (optional)	

Attachments

Filename	Date uploaded	Uploaded by	Label	Description	Action
60677 Cheyenne WY Final Letter 12R.pdf	01/09/2024	sbargsten@cheyennebopu.org	Evaluation Attachments	Building Code Effectiveness Grading Schedule Results	

Comments & attachments

▶ Community	1 comment, 7 attachments
▶ Mitigation plan	1 comment, 1 attachment
▶ Scope of work	0 comments, 5 attachments
▶ Budget	1 comment, 2 attachments
▶ Cost-effectiveness	0 comments, 0 attachments
▶ Evaluation	0 comments, 1 attachment

Assurances and certifications

 Signed by SAR:
Brad Bowen on 02/07/2024

OMB number: 4040-0007, Expiration date: 02/28/2025 [View burden statement](#)

SF-424B: Assurances - Non-Construction Programs

OMB Number: 4040-0007
Expiration Date: 02/28/2025

Certain of these assurances may not be applicable to your project or program. If you have any questions, please contact the awarding agency. Further, certain Federal awarding agencies may require applicants to certify to additional assurances. If such is the case, you will be notified.

As the duly authorized representative of the applicant, I certify that the applicant:

1. Has the legal authority to apply for Federal assistance and the institutional, managerial and financial capability (including funds sufficient to pay the non-Federal share of project cost) to ensure proper planning, management and completion of the project described in this application.
2. Will give the awarding agency, the Comptroller General of the United States and, if appropriate, the State, through any authorized representative, access to and the right to examine all records, books, papers, or documents related to the award; and will establish a proper accounting system in accordance with generally accepted accounting standards or agency directives.
3. Will establish safeguards to prohibit employees from using their positions for a purpose that constitutes or presents the appearance of personal or organizational conflict of interest, or personal gain.
4. Will initiate and complete the work within the applicable time frame after receipt of approval of the awarding agency.
5. Will comply with the Intergovernmental Personnel Act of 1970 (42 U.S.C. §§4728-4763) relating to prescribed standards for merit systems for programs funded under one of the 19 statutes or regulations specified in Appendix A of OPM's Standards for a Merit System of Personnel Administration (5 C.F.R. 900, Subpart F).
6. Will comply with all Federal statutes relating to nondiscrimination. These include but are not limited to: (a) Title VI of the Civil Rights Act of 1964 (P.L. 88-352) which prohibits discrimination on the basis of race, color or national origin; (b) Title IX of the Education Amendments of 1972, as amended (20 U.S.C. §§1681-1683, and 1685-1686), which prohibits discrimination on the basis of sex; (c) Section 504 of the Rehabilitation Act of 1973, as amended (29 U.S.C. §794), which prohibits discrimination on the basis of disability.

- on the basis of handicaps; (d) the Age Discrimination Act of 1975, as amended (42 U.S.C. §§6101-6107), which prohibits discrimination on the basis of age; (e) the Drug Abuse Office and Treatment Act of 1972 (P.L. 92-255), as amended, relating to nondiscrimination on the basis of drug abuse; (f) the Comprehensive Alcohol Abuse and Alcoholism Prevention, Treatment and Rehabilitation Act of 1970 (P.L. 91-616), as amended, relating to nondiscrimination on the basis of alcohol abuse or alcoholism; (g) §§523 and 527 of the Public Health Service Act of 1912 (42 U.S.C. §§290 dd-3 and 290 ee- 3), as amended, relating to confidentiality of alcohol and drug abuse patient records; (h) Title VIII of the Civil Rights Act of 1968 (42 U.S.C. §§3601 et seq.), as amended, relating to nondiscrimination in the sale, rental or financing of housing; any other nondiscrimination provisions in the specific statute(s) under which application for Federal assistance is being made; and, (j) the requirements of any other nondiscrimination statute(s) which may apply to the application.
7. Will comply, or has already complied, with the requirements of Titles II and III of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (P.L. 91-646) which provide for fair and equitable treatment of persons displaced or whose property is acquired as a result of Federal or federally-assisted programs. These requirements apply to all interests in real property acquired for project purposes regardless of Federal participation in purchases.
 8. Will comply, as applicable, with provisions of the Hatch Act (5 U.S.C. §§1501-1508 and 7324-7328) which limit the political activities of employees whose principal employment activities are funded in whole or in part with Federal funds.
 9. Will comply, as applicable, with the provisions of the Davis-Bacon Act (40 U.S.C. §§276a to 276a-7), the Copeland Act (40 U.S.C. §276c and 18 U.S.C. §874), and the Contract Work Hours and Safety Standards Act (40 U.S.C. §§327-333), regarding labor standards for federally-assisted construction subagreements.
 10. Will comply, if applicable, with flood insurance purchase requirements of Section 102(a) of the Flood Disaster Protection Act of 1973 (P.L. 93-234) which requires recipients in a special flood hazard area to participate in the program and to purchase flood insurance if the total cost of insurable construction and acquisition is \$10,000 or more.
 11. Will comply with environmental standards which may be prescribed pursuant to the following: (a) institution of environmental quality control measures under the National Environmental Policy Act of 1969 (P.L. 91-190) and Executive Order (EO) 11514; (b) notification of violating facilities pursuant to EO 11738; (c) protection of wetlands pursuant to EO 11990; (d) evaluation of flood hazards in floodplains in accordance with EO 11988; (e) assurance of project consistency with the approved State management program developed under the Coastal Zone Management Act of 1972 (16 U.S.C. §§1451 et seq.); (f) conformity of Federal actions to State (Clean Air) Implementation Plans under Section 176(c) of the Clean Air Act of 1955, as amended (42 U.S.C. §§7401 et seq.); (g) protection of underground sources of drinking water under the Safe Drinking Water Act of 1974, as amended (P.L. 93-523); and, (h) protection of endangered species under the Endangered Species Act of 1973, as amended (P.L. 93-205).
 12. Will comply with the Wild and Scenic Rivers Act of 1968 (16 U.S.C. §§1271 et seq.) related to protecting components or potential components of the national wild and scenic rivers system.
 13. Will assist the awarding agency in assuring compliance with Section 106 of the National Historic Preservation Act of 1966, as amended (16 U.S.C. §470), EO 11593 (identification and protection of historic properties), and the Archaeological and Historic Preservation Act of 1974 (16 U.S.C. §§469a-1 et seq.).
 14. Will comply with P.L. 93-348 regarding the protection of human subjects involved in research, development, and related activities supported by this award of assistance.
 15. Will comply with the Laboratory Animal Welfare Act of 1966 (P.L. 89-544, as amended, 7 U.S.C. §§2131 et seq.) pertaining to the care, handling, and treatment of warm blooded animals held for research, teaching, or other activities supported by this award of assistance.
 16. Will comply with the Lead-Based Paint Poisoning Prevention Act (42 U.S.C. §§4801 et seq.) which prohibits the use of lead-based paint in construction or rehabilitation of residence structures.
 17. Will cause to be performed the required financial and compliance audits in accordance with the Single Audit Act Amendments of 1996 and OMB Circular No. A-133, "Audits of States, Local Governments, and Non-Profit Organizations."
 18. Will comply with all applicable requirements of all other Federal laws, executive orders, regulations, and policies governing this program.
 19. Will comply with the requirements of Section 106(g) of the Trafficking Victims Protection Act (TVPA) of 2000, as amended (22 U.S.C. 7104) which prohibits grant award recipients or a sub-recipient from (1) Engaging in severe forms of trafficking in persons during the period of time that the award is in effect (2) Procuring a commercial sex act during the period of time that the award is in effect or (3) Using forced labor in the performance of the award or subawards under the award.

OMB number: 4040-0013, Expiration date: 02/28/2025 [View burden statement](#)

Content:

Complete this form to disclose lobbying activities pursuant to 31 U.S.C.1352

OMB Number: 4040-0013

Expiration Date: 02/28/2025

The applicant is not currently required to submit the SF-LLL.

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Article 3	Acknowledgement of Federal Funding from DHS
Article 4	Activities Conducted Abroad
Article 5	Age Discrimination Act of 1975
Article 6	Americans with Disabilities Act of 1990
Article 7	Best Practices for Collection and Use of Personally Identifiable Information
Article 8	Civil Rights Act of 1964 – Title VI
Article 9	Civil Rights Act of 1968
Article 10	Copyright
Article 11	Debarment and Suspension
Article 12	Drug-Free Workplace Regulations
Article 13	Duplicative Costs
Article 14	Education Amendments of 1972 (Equal Opportunity in Education Act) – Title IX
Article 15	E.O. 14074 – Advancing Effective, Accountable Policing and Criminal Justice Practices to Enhance Public Trust and Public Safety
Article 16	Energy Policy and Conservation Act
Article 17	False Claims Act and Program Fraud Civil Remedies
Article 18	Federal Debt Status
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Article 21	Hotel and Motel Fire Safety Act of 1990
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Article 23	Limited English Proficiency (Civil Rights Act of 1964, Title VI)
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Article 1**Assurances, Administrative Requirements, Cost Principles, Representations, and Certifications**

I. Recipients must complete either the Office of Management and Budget (OMB) Standard Form 424B Assurances – Non- Construction Programs, or OMB Standard Form 424D Assurances – Construction Programs, as applicable. Certain assurances in these documents may not be applicable to your program and the DHS financial assistance office (DHS FAO) may require applicants to certify additional assurances. Applicants are required to fill out the assurances as instructed by the federal awarding agency.

Article 2**General Acknowledgements and Assurances**

Recipients are required to follow the applicable provisions of the Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards in effect as of the federal award date and located at 2 C.F.R. Part 200 and adopted by DHS at 2 C.F.R. § 3002.10. All recipients and subrecipients must acknowledge and agree to provide DHS access to records, accounts, documents, information, facilities, and staff pursuant to 2 C.F.R. § 200.337. I. Recipients must cooperate with any DHS compliance reviews or compliance investigations. II. Recipients must give DHS access to examine and copy records, accounts, and other documents and sources of information related to the federal financial assistance award and permit access to facilities and personnel. III. Recipients must submit timely, complete, and accurate reports to the appropriate DHS officials and maintain appropriate backup documentation to support the reports. IV. Recipients must comply with all other special reporting, data collection, and evaluation requirements required by law, federal regulation, Notice of Funding Opportunity, federal award specific terms and conditions, and/or federal awarding agency program guidance. V. Recipients must complete the DHS Civil Rights Evaluation Tool within thirty (30) days of receiving the Notice of Award for the first award under which this term applies. Recipients of multiple federal awards from DHS should only submit one completed tool for their organization, not per federal award. After the initial submission, recipients are required to complete the tool once every two (2) years if they have an active federal award, not every time a federal award is made. Recipients must submit the completed tool, including supporting materials, to CivilRightsEvaluation@hq.dhs.gov. This tool clarifies the civil rights obligations and related reporting requirements contained in these DHS Standard Terms and Conditions. Subrecipients are not required to complete and submit this tool to DHS. The evaluation tool can be found at <https://www.dhs.gov/publication/dhs-civil-rights-evaluation-tool>. DHS Civil Rights Evaluation Tool | Homeland Security. The DHS Office for Civil Rights and Civil Liberties will consider, in its discretion, granting an extension to the 30-day deadline if the recipient identifies steps and a timeline for completing the tool. Recipients must request extensions by emailing the request to CivilRightsEvaluation@hq.dhs.gov prior to expiration of the 30-day deadline.

Article 3	Acknowledgement of Federal Funding from DHS Recipients must acknowledge their use of federal award funding when issuing statements, press releases, requests for proposal, bid invitations, and other documents describing projects or programs funded in whole or in part with federal award funds.
Article 4	Activities Conducted Abroad Recipients must coordinate with appropriate government authorities when performing project activities outside the United States obtain all appropriate licenses, permits, or approvals.
Article 5	Age Discrimination Act of 1975 Recipients must comply with the requirements of the Age Discrimination Act of 1975, Pub. L. No. 94-135 (codified as amended at 42 U.S.C. § 6101 et seq.), which prohibits discrimination on the basis of age in any program or activity receiving federal financial assistance.
Article 6	Americans with Disabilities Act of 1990 Recipients must comply with the requirements of Titles I, II, and III of the Americans with Disabilities Act, Pub. L. No. 101-336 (1990) (codified as amended at 42 U.S.C. §§ 12101– 12213), which prohibits recipients from discriminating on the basis of disability in the operation of public entities, public and private transportation systems, places of public accommodation, and certain testing entities.
Article 7	Best Practices for Collection and Use of Personally Identifiable Information Recipients who collect personally identifiable information (PII) as part of carrying out the scope of work under a federal award are required to have a publicly available privacy policy that describes standards on the usage and maintenance of the PII they collect. DHS defines PII as any information that permits the identity of an individual to be directly or indirectly inferred, including any information that is linked or linkable to that individual. Recipients may also find the DHS Privacy Impact Assessments: Privacy Guidance and Privacy Template as useful resources respectively.

Article 8**Civil Rights Act of 1964 – Title VI**

Recipients must comply with the requirements of Title VI of the Civil Rights Act of 1964, Pub. L. No. 88-352 (codified as amended at 42 U.S.C. § 2000d et seq.), which provides that no person in the United States will, on the grounds of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving federal financial assistance. DHS implementing regulations for the Act are found at 6 C.F.R. Part 21. Recipients of an award from the Federal Emergency Management Agency (FEMA) must also comply with FEMA's implementing regulations at 44 C.F.R. Part 7.

Article 9**Civil Rights Act of 1968**

Recipients must comply with Title VIII of the Civil Rights Act of 1968, Pub. L. No. 90-284 (codified as amended at 42 U.S.C. § 3601 et seq.) which prohibits recipients from discriminating in the sale, rental, financing, and advertising of dwellings, or in the provision of services in connection therewith, on the basis of race, color, national origin, religion, disability, familial status, and sex, as implemented by the U.S. Department of Housing and Urban Development at 24 C.F.R. Part 100. The prohibition on disability discrimination includes the requirement that new multifamily housing with four or more dwelling units— i.e., the public and common use areas and individual apartment units (all units in buildings with elevators and ground-floor units in buildings without elevators)—be designed and constructed with certain accessible features. (See 24 C.F.R. Part 100, Subpart D.)

Article 10**Copyright**

Recipients must affix the applicable copyright notices of 17 U.S.C. §§ 401 or 402 to any work first produced under federal awards and also include an acknowledgement that the work was produced under a federal award (including the federal award number and federal awarding agency). As detailed in 2 C.F.R. § 200.315, a federal awarding agency reserves a royalty-free, nonexclusive, and irrevocable right to reproduce, publish, or otherwise use the work for federal purposes and to authorize others to do so.

Article 11**Debarment and Suspension**

Recipients must comply with the non-procurement debarment and suspension regulations implementing Executive Orders (E.O.) 12549 and 12689 set forth at 2 C.F.R. Part 180 as implemented by DHS at 2 C.F.R. Part 3000. These regulations prohibit recipients from entering into covered transactions (such as subawards and contracts) with certain parties that are debarred, suspended, or otherwise excluded from or ineligible for participation in federal assistance programs or activities.

Article 12	Drug-Free Workplace Regulations Recipients must comply with drug-free workplace requirements in Subpart B (or Subpart C, if the recipient is an individual) of 2 C.F.R. Part 3001, which adopts the Government- wide implementation (2 C.F.R. Part 182) of the Drug-Free Workplace Act of 1988 (41 U.S.C. §§ 8101-8106).
Article 13	Duplicative Costs Recipients are prohibited from charging any cost to this federal award that will be included as a cost or used to meet cost sharing or matching requirements of any other federal award in either the current or a prior budget period. (See 2 C.F.R. § 200.403(f)). However, recipients may shift costs that are allowable under two or more federal awards where otherwise permitted by federal statutes, regulations, or the federal financial assistance award terms and conditions.
Article 14	Education Amendments of 1972 (Equal Opportunity in Education Act) – Title IX Recipients must comply with the requirements of Title IX of the Education Amendments of 1972, Pub. L. No. 92-318 (codified as amended at 20 U.S.C. § 1681 et seq.), which provide that no person in the United States will, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any educational program or activity receiving federal financial assistance. DHS implementing regulations are codified at 6 C.F.R. Part 17. Recipients of an award from the Federal Emergency Management Agency (FEMA) must also comply with FEMA’s implementing regulations at 44 C.F.R. Part 19.
Article 15	E.O. 14074 – Advancing Effective, Accountable Policing and Criminal Justice Practices to Enhance Public Trust and Public Safety Recipient State, Tribal, local, or territorial law enforcement agencies must comply with the requirements of section 12(c) of E.O. 14074. Recipient State, Tribal, local, or territorial law enforcement agencies are also encouraged to adopt and enforce policies consistent with E.O. 14074 to support safe and effective policing.
Article 16	Energy Policy and Conservation Act Recipients must comply with the requirements of the Energy Policy and Conservation Act, Pub. L. No. 94-163 (1975) (codified as amended at 42 U.S.C. § 6201 et seq.), which contain policies relating to energy efficiency that are defined in the state energy conservation plan issued in compliance with this Act.

Article 17	False Claims Act and Program Fraud Civil Remedies Recipients must comply with the requirements of the False Claims Act, 31 U.S.C. §§ 3729- 3733, which prohibit the submission of false or fraudulent claims for payment to the Federal Government. (See 31 U.S.C. §§ 3801- 3812, which details the administrative remedies for false claims and statements made.)
Article 18	Federal Debt Status All recipients are required to be non-delinquent in their repayment of any federal debt. Examples of relevant debt include delinquent payroll and other taxes, audit disallowances, and benefit overpayments. (See OMB Circular A-129.)
Article 19	Federal Leadership on Reducing Text Messaging while Driving Recipients are encouraged to adopt and enforce policies that ban text messaging while driving recipient-owned, recipient-rented, or privately owned vehicles when on official government business or when performing any work for or on behalf of the Federal Government. Recipients are also encouraged to conduct the initiatives of the type described in Section 3(a) of E.O. 13513.
Article 20	Fly America Act of 1974 Recipients must comply with Preference for U.S. Flag Air Carriers (a list of certified air carriers can be found at: Certificated Air Carriers List US Department of Transportation, https://www.transportation.gov/policy/aviation-policy/certificated-air-carriers-list) for international air transportation of people and property to the extent that such service is available, in accordance with the International Air Transportation Fair Competitive Practices Act of 1974, 49 U.S.C. § 40118, and the interpretative guidelines issued by the Comptroller General of the United States in the March 31, 1981, amendment to Comptroller General Decision B-138942.
Article 21	Hotel and Motel Fire Safety Act of 1990 Recipients must ensure that all conference, meeting, convention, or training space funded entirely or in part by federal award funds complies with the fire prevention and control guidelines of Section 6 of the Hotel and Motel Fire Safety Act of 1990, 15 U.S.C. § 2225a.

Article 22	John S. McCain National Defense Authorization Act of Fiscal Year 2019 Recipients, subrecipients, and their contractors and subcontractors are subject to the prohibitions described in section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. No. 115-232 (2018) and 2 C.F.R. §§ 200.216, 200.327, 200.471, and Appendix II to 2 C.F.R. Part 200. The statute – as it applies to DHS recipients, subrecipients, and their contractors and subcontractors – prohibits obligating or expending federal award funds on certain telecommunications and video surveillance products and contracting with certain entities for national security reasons.
Article 23	Limited English Proficiency (Civil Rights Act of 1964, Title VI) Recipients must comply with Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.) prohibition against discrimination on the basis of national origin, which requires that recipients of federal financial assistance take reasonable steps to provide meaningful access to persons with limited English proficiency (LEP) to their programs and services. For additional assistance and information regarding language access obligations, please refer to the DHS Recipient Guidance: https://www.dhs.gov/guidance-published-help-department-supported-organizations-provide-meaningful-access-people-limited and additional resources on http://www.lep.gov.
Article 24	Lobbying Prohibitions Recipients must comply with 31 U.S.C. § 1352 and 6 C.F.R. Part 9, which provide that none of the funds provided under a federal award may be expended by the recipient to pay any person to influence, or attempt to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with any federal action related to a federal award or contract, including any extension, continuation, renewal, amendment, or modification. Per 6 C.F.R. Part 9, recipients must file a lobbying certification form as described in Appendix A to 6 C.F.R. Part 9 or available on Grants.gov as the Grants.gov Lobbying Form and file a lobbying disclosure form as described in Appendix B to 6 C.F.R. Part 9 or available on Grants.gov as the Disclosure of Lobbying Activities (SF-LLL).
Article 25	National Environmental Policy Act Recipients must comply with the requirements of the National Environmental Policy Act of 1969, Pub. L. No. 91-190 (1970) (codified as amended at 42 U.S.C. § 4321 et seq.) (NEPA) and the Council on Environmental Quality (CEQ) Regulations for Implementing the Procedural Provisions of NEPA, which require recipients to use all practicable means within their authority, and consistent with other essential considerations of national policy, to create and maintain conditions under which people and nature can exist in productive harmony and fulfill the social, economic, and other needs of present and future generations of Americans.

Article 26	Nondiscrimination in Matters Pertaining to Faith-Based Organizations It is DHS policy to ensure the equal treatment of faith-based organizations in social service programs administered or supported by DHS or its component agencies, enabling those organizations to participate in providing important social services to beneficiaries. Recipients must comply with the equal treatment policies and requirements contained in 6 C.F.R. Part 19 and other applicable statutes, regulations, and guidance governing the participations of faith-based organizations in individual DHS programs.
Article 27	Non-Supplanting Requirement Recipients of federal awards under programs that prohibit supplanting by law must ensure that federal funds supplement but do not supplant non-federal funds that, in the absence of such federal funds, would otherwise have been made available for the same purpose.
Article 28	Notice of Funding Opportunity Requirements All the instructions, guidance, limitations, scope of work, and other conditions set forth in the Notice of Funding Opportunity (NOFO) for this federal award are incorporated by reference. All recipients must comply with any such requirements set forth in the NOFO. If a condition of the NOFO is inconsistent with these terms and conditions and any such terms of the Award, the condition in the NOFO shall be invalid to the extent of the inconsistency. The remainder of that condition and all other conditions set forth in the NOFO shall remain in effect.
Article 29	Patents and Intellectual Property Rights Recipients are subject to the Bayh-Dole Act, 35 U.S.C. § 200 et seq. and applicable regulations governing inventions and patents, including the regulations issued by the Department of Commerce at 37 C.F.R. Part 401 (Rights to Inventions Made by Nonprofit Organizations and Small Business Firms under Government Awards, Contracts, and Cooperative Agreements) and the standard patent rights clause set forth at 37 C.F.R. § 401.14.
Article 30	Procurement of Recovered Materials States, political subdivisions of states, and their contractors must comply with Section 6002 of the Solid Waste Disposal Act, Pub. L. No. 89-272 (1965) (codified as amended by the Resource Conservation and Recovery Act at 42 U.S.C. § 6962) and 2 C.F.R. § 200.323. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 C.F.R. Part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition.

Article 31 Rehabilitation Act of 1973

Recipients must comply with the requirements of Section 504 of the Rehabilitation Act of 1973, Pub. L. No. 93-112 (codified as amended at 29 U.S.C. § 794), which provides that no otherwise qualified handicapped individuals in the United States will, solely by reason of the handicap, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving federal financial assistance.

Article 32 Reporting of Matters Related to Recipient Integrity and Performance

If the total value of any currently active grants, cooperative agreements, and procurement contracts from all federal awarding agencies exceeds \$10,000,000 for any period of time during the period of performance of the federal award, then the recipient must comply with the requirements set forth in the government-wide Award Term and Condition for Recipient Integrity and Performance Matters located at 2 C.F.R. Part 200, Appendix XII, the full text of which is incorporated by reference.

Article 33 Reporting Subawards and Executive Compensation

For federal awards that equal or exceed \$30,000, recipients are required to comply with the requirements set forth in the government-wide award term on Reporting Subawards and Executive Compensation set forth at 2 C.F.R. Part 170, Appendix A, the full text of which is incorporated by reference.

Article 34**Required Use of American Iron, Steel, Manufactured Products, and Construction Materials**

Recipients of an award of Federal financial assistance from a program for infrastructure are hereby notified that none of the funds provided under this award may be used for a project for infrastructure unless: (1) all iron and steel used in the project are produced in the United States—this means all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States; (2) all manufactured products used in the project are produced in the United States—this means the manufactured product was manufactured in the United States; and the cost of the components of the manufactured product that are mined, produced, or manufactured in the United States is greater than 55 percent of the total cost of all components of the manufactured product, unless another standard for determining the minimum amount of domestic content of the manufactured product has been established under applicable law or regulation; and (3) all construction materials are manufactured in the United States—this means that all manufacturing processes for the construction material occurred in the United States. The Buy America preference only applies to articles, materials, and supplies that are consumed in, incorporated into, or affixed to an infrastructure project. As such, it does not apply to tools, equipment, and supplies, such as temporary scaffolding, brought to the construction site and removed at or before the completion of the infrastructure project. Nor does a Buy America preference apply to equipment and furnishings, such as movable chairs, desks, and portable computer equipment, that are used at or within the finished infrastructure project but are not an integral part of the structure or permanently affixed to the infrastructure project. Waivers When necessary, recipients may apply for, and the agency may grant, a waiver from these requirements. The agency should notify the recipient for information on the process for requesting a waiver from these requirements. (a) When the Federal agency has determined that one of the following exceptions applies, the awarding official may waive the application of the domestic content procurement preference in any case in which the agency determines that: (1) applying the domestic content procurement preference would be inconsistent with the public interest; (2) the types of iron, steel, manufactured products, or construction materials are not produced in the United States in sufficient and reasonably available quantities or of a satisfactory quality; or (3) the inclusion of iron, steel, manufactured products, or construction materials produced in the United States will increase the cost of the overall project by more than 25 percent. A request to waive the application of the domestic content procurement preference must be in writing. The agency will provide instructions on the format, contents, and supporting materials required for any waiver request. Waiver requests are subject to public comment periods of no less than 15 days and must be reviewed by the Made in America Office. There may be instances where an award qualifies, in whole or in part, for an existing waiver described at “Buy America” Preference in FEMA Financial Assistance Programs for Infrastructure | FEMA.gov. Definitions The definitions applicable to this term are set forth at 2 C.F.R. § 184.3, the full text of which is incorporated by reference.

Article 35	SAFECOM Recipients receiving federal financial assistance awards made under programs that provide emergency communication equipment and its related activities must comply with the SAFECOM Guidance for Emergency Communication Grants, including provisions on technical standards that ensure and enhance interoperable communications. The SAFECOM Guidance is updated annually and can be found at Funding and Sustainment CISA.
Article 36	Terrorist Financing Recipients must comply with E.O. 13224 and applicable statutory prohibitions on transactions with, and the provisions of resources and support to, individuals and organizations associated with terrorism. Recipients are legally responsible for ensuring compliance with the E.O. and laws.
Article 37	Trafficking Victims Protection Act of 2000 (TVPA) Recipients must comply with the requirements of the government-wide financial assistance award term which implements Trafficking Victims Protection Act of 2000, Pub. L. No. 106-386, § 106 (codified as amended at 22 U.S.C. § 7104). The award term is located at 2 C.F.R. § 175.15, the full text of which is incorporated by reference.
Article 38	Universal Identifier and System of Award Management Recipients are required to comply with the requirements set forth in the government-wide financial assistance award term regarding the System for Award Management and Universal Identifier Requirements located at 2 C.F.R. Part 25, Appendix A, the full text of which is incorporated reference.
Article 39	USA PATRIOT Act of 2001 Recipients must comply with requirements of Section 817 of the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 (USA PATRIOT Act), which amends 18 U.S.C. §§ 175–175c.
Article 40	Use of DHS Seal, Logo and Flags Recipients must obtain written permission from DHS prior to using the DHS seals, logos, crests, or reproductions of flags, or likenesses of DHS agency officials. This includes use of DHS component (e.g., FEMA, CISA, etc.) seals, logos, crests, or reproductions of flags, or likenesses of component officials.
Article 41	Whistleblower Protection Act Recipients must comply with the statutory requirements for whistleblower protections at 10 U.S.C § 470141 U.S.C. § 4712.

Article 42**Applicability of DHS Standard Terms and Conditions to Tribes**

The DHS Standard Terms and Conditions are a restatement of general requirements imposed upon recipients and flow down to sub-recipients as a matter of law, regulation, or executive order. If the requirement does not apply to Indian tribes or there is a federal law or regulation exempting its application to Indian tribes, then the acceptance by Tribes of, or acquiescence to, DHS Standard Terms and Conditions does not change or alter its inapplicability to an Indian tribe. The execution of grant documents is not intended to change, alter, amend, or impose additional liability or responsibility upon the Tribe where it does not already exist.

Article 43**Acceptance of Post Award Changes**

In the event FEMA determines that an error in the award package has been made, or if an administrative change must be made to the award package, recipients will be notified of the change in writing. Once the notification has been made, any subsequent requests for funds will indicate recipient acceptance of the changes to the award. Please call FEMA Grant Management Operations at (866) 927-5646 or via e-mail to: ASK-GMD@fema.dhs.gov if you have any questions.

Article 44**Disposition of Equipment Acquired Under the Federal Award**

For purposes of original or replacement equipment acquired under this award by a non-state recipient or non-state sub-recipients, when that equipment is no longer needed for the original project or program or for other activities currently or previously supported by a federal awarding agency, you must request instructions from FEMA to make proper disposition of the equipment pursuant to 2 C.F.R. section 200.313. State recipients and state sub-recipients must follow the disposition requirements in accordance with state laws and procedures.

Article 45**Prior Approval for Modification of Approved Budget**

Before making any change to the FEMA approved budget for this award, you must request prior written approval from FEMA where required by 2 C.F.R. section 200.308. For purposes of non-construction projects, FEMA is utilizing its discretion to impose an additional restriction under 2 C.F.R. section 200.308(f) regarding the transfer of funds among direct cost categories, programs, functions, or activities. Therefore, for awards with an approved budget where the federal share is greater than the simplified acquisition threshold (currently \$250,000), you may not transfer funds among direct cost categories, programs, functions, or activities without prior written approval from FEMA where the cumulative amount of such transfers exceeds or is expected to exceed ten percent (10%) of the total budget FEMA last approved. For purposes of awards that support both construction and non-construction work, FEMA is utilizing its discretion under 2 C.F.R. section 200.308(h)(5) to require the recipient to obtain prior written approval from FEMA before making any fund or budget transfers between the two types of work. You must report any deviations from your FEMA approved budget in the first Federal Financial Report (SF-425) you submit following any budget deviation, regardless of whether the budget deviation requires prior written approval.

Article 46**Indirect Cost Rate**

2 C.F.R. section 200.211(b)(15) requires the terms of the award to include the indirect cost rate for the federal award. If applicable, the indirect cost rate for this award is stated in the budget documents or other materials approved by FEMA and included in the award file.

Attachment C
FEDERAL EMERGENCY MANAGEMENT AGENCY
RECORD OF ENVIRONMENTAL CONSIDERATION (REC)

Project EMD-2023-BR-001-0003
Title: Drought Mitigation Alternatives Analysis

NEPA DETERMINATION

Non Compliant Flag: No	EA Draft Date:	EA Final Date:
EA Public Notice Date:	EA Fonsi	Level: CATEx
EIS Notice of Intent	EIS ROD Date:	

Comment This is a scoping project focused on alternative analysis for drought mitigation. The City of Cheyenne (City) is at risk of facing impacts of drought in all of its water supply basins and potential loss of junior water rights through Colorado River curtailment. The City is working to develop a study of two drought mitigation activities that will culminate in an alternatives analysis. The Board of Public Utilities (BOPU) will hire and oversee a contractor that will conduct an evaluation of drought and hydraulic conditions as it relates to the hydraulic basins that supply Cheyenne's potable water, perform a Benefit-Cost Analysis, and develop preliminary designs. The selected drought mitigation alternative will maximize use of existing water rights held by the City in the Crow Creek watershed. The outcome of this project will support application for future funding opportunities. One option includes a surface water blending study that will focus on regulatory requirements for water quality and an appropriate blending ratio with this new source water for potable water delivered to residential, commercial, and industrial customers in the BOPU's service area, which includes Cheyenne, FE Warren Air Force Base, and portions of Laramie County. Potential blends will be identified from Crystal Reservoir and Lower North Fork Crow Creek, South Fork Crow Creek, and Casper aquifer. If this solution is determined feasible, the study will also inform design decisions regarding modification of water treatment processes (e.g., disinfection system) and any infrastructure changes that might be needed. An alternative to the surface water blending study includes expansion of the existing water reuse distribution system by converting the lakes (i.e., Absaraca, Kiwanis, and Sloans) to Class A recycled water. Six-hundred acre-feet of raw water that would otherwise fill the lakes would be diverted to a water treatment plant and delivered to Cheyenne to meet potable demand. BOPU is currently under contract with a consultant for the first phase of a feasibility study to identify regulatory requirements, involve stakeholders, and assess potential risks to human health and the environment associated with exposures to recycled water in the lakes.

FEMA Environmental Historic Preservation (EHP) has reviewed the project; although there is no information necessary for EHP review at this time since the grant is for project scoping activities only, EHP recommends the City of Cheyenne consider National Environmental Policy Act (NEPA) applicable laws and regulations when studying any future project actions. It is recommended that the City start EHP existing conditions reviews and analysis once a project area is defined.

This project may have eligible National Register of Historic Places (NRHP) sites within the project boundaries. Ground disturbing activities may trigger a Section 106 of the National Historic Preservation Act consultation with the Wyoming State Historic Preservation Office. FEMA recommends the City of Cheyenne procure the services of a qualified archaeological consultant to prepare a Class I Cultural Resources Survey report and then conduct a Class III survey if required based on the results of the Class I survey. The Cultural Resources Survey report's area of potential effect (APE) should consider and analyze impacts associated with all temporary and permanent project activities, including staging/stockpile areas, access routes, vegetation removal, and all areas potentially subject to ground disturbance.

FEMA recommends the City of Cheyenne procure the services of a qualified biologist to assess the presence of any federally listed threatened and endangered species and/or wetlands within the proposed project boundaries, including locations of staging areas and any other areas of ground disturbance. Work within a jurisdictional Waters of the U.S. will require a Section 404 permit under the Clean Water Act from the U.S. Army Corps of Engineers and may require a floodplain development permit from the local floodplain administrator.

Please note that FEMA issued its implementing procedures for the Federal Flood Risk Management Standard (FFRMS) on 09/09/2024 (FFRMS FEMA Policy: FP 206-24-005). FEMA recommends that the project team consider FFRMS in their scoping activities, as applicable. For more information, please see policy document at: https://www.fema.gov/sites/default/files/documents/fema_floodplain-management_ffrms-policy_092024.pdf

Other environmental laws and regulations that may be applicable to future project planning efforts include: Endangered Species Act, Executive Order 11990 (Wetlands), Executive Order 11988 (Floodplain Management) and Executive Order 12898 (Environmental Justice for Low Income and Minority Populations). Upon award of the project scoping application, FEMA EHP staff is available to provide guidance and support on NEPA

RECORD OF ENVIRONMENTAL CONSIDERATION (REC)

Project EMD-2023-BR-001-0003

Title: Drought Mitigation Alternatives Analysis

and EHP compliance, if requested. Once the project boundaries are defined, FEMA EHP recommends cultural resources and biological resources reports to help the City of Cheyenne identify any future EHP concerns and/or required consultations. These studies can be completed as part of the project scoping application scope of work and can streamline the EHP review once the project advances.

The project area for these studies should consider and analyze impacts associated with all temporary and permanent project activities, including staging/stockpile areas, access routes, vegetation removal, and all areas potentially subject to ground disturbance. This memorandum and FEMA EHP approval of the requested project scoping funds does not constitute authorization of any construction activities associated with proposed future mitigation actions.

- kblanto1 - 11/12/2024 21:09:52 GMT

CATEX CATEGORIES

Catex Category Code	Description	Selected
a4	(a4) Information gathering, data analysis and processing, information dissemination, review, interpretation, and development of documents. If any of these activities result in proposals for further action, those proposals must be covered by an appropriate CATEX. Examples include but are not limited to: (a) Document mailings, publication and distribution, training and information programs, historical and cultural demonstrations, and public affairs actions. (b) Studies, reports, proposals, analyses, literature reviews; computer modeling; and non-intrusive intelligence gathering activities.	Yes
a7	(a7) The commitment of resources, personnel, and funding to conduct audits, surveys, and data collection of a minimally intrusive nature. If any of these commitments result in proposals for further action, those proposals must be covered by an appropriate CATEX. Examples include, but are not limited to: (a) Activities designed to support the improvement or upgrade management of natural resources, such as surveys for threatened and endangered species, wildlife and wildlife habitat, historic properties, and archeological sites; wetland delineations; timber stand examination; minimal water, air, waste, material and soil sampling; audits, photography, and interpretation. (b) Minimally-intrusive geological, geophysical, and geo-technical activities, including mapping and engineering surveys. (c) Conducting Facility Audits, Environmental Site Assessments and Environmental Baseline Surveys, and (d) Vulnerability, risk, and structural integrity assessments of infrastructure.	Yes

EXTRAORDINARY

Extraordinary Circumstance Code	Description	Selected ?
	No Extraordinary Circumstances were selected	

ENVIRONMENTAL LAW / EXECUTIVE ORDER

Environmental Law/ Executive Order	Status	Description	Comment
Clean Air Act (CAA)	Completed	Project will not result in permanent air emissions - Review concluded	

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Title: Drought Mitigation Alternatives Analysis

Environmental Law/ Executive Order	Status	Description	Comment
Coastal Barrier Resources Act (CBRA)	Completed	Project is not on or connected to CBRA Unit or otherwise protected area - Review concluded	
Clean Water Act (CWA)	Completed	Project would not affect any water of the U.S. - Review concluded	
Coastal Zone Management Act (CZMA)	Completed	Project is not located in a coastal zone area and does not affect a coastal zone area - Review concluded	
Executive Order 11988 - Floodplains	Completed	No effect on floodplain/flood levels and project outside floodplain - Review concluded	
Executive Order 11990 - Wetlands	Completed	No effects on wetlands and project outside wetlands - Review concluded	
Executive Order 12898 - Environmental Justice for Low Income and Minority Populations	Completed	No Low income or minority population in, near or affected by the project - Review concluded	
Endangered Species Act (ESA)	Completed	No listed species and/or designated critical habitat present in areas affected directly or indirectly by the federal action - Review concluded	
Farmland Protection Policy Act (FPPA)	Completed	Project does not affect designated prime or unique farmland - Review concluded	
Fish and Wildlife Coordination Act (FWCA)	Completed	Project does not affect, control, or modify a waterway/body of water - Review concluded	
Migratory Bird Treaty Act (MBTA)	Completed	Project not located within a flyway zone - Review concluded	
Magnuson-Stevens Fishery Conservation and Management Act (MSA)	Completed	Project not located in or near Essential Fish Habitat - Review concluded	
National Historic Preservation Act (NHPA)	Completed	Not type of activity with potential to affect historic properties - Review concluded	
Wild and Scenic Rivers Act (WSR)	Completed	Project is not along and does not affect Wild and Scenic River - Review concluded	

FEDERAL EMERGENCY MANAGEMENT AGENCY
RECORD OF ENVIRONMENTAL CONSIDERATION (REC)

Project EMD-2023-BR-001-0003
Title: Drought Mitigation Alternatives Analysis

CONDITIONS

Standard Conditions:

Any change to the approved scope of work will require re-evaluation for compliance with NEPA and other Laws and Executive Orders.

This review does not address all federal, state and local requirements. Acceptance of federal funding requires recipient to comply with all federal, state and local laws. Failure to obtain all appropriate federal, state and local environmental permits and clearances may jeopardize federal funding.

If ground disturbing activities occur during construction, applicant will monitor ground disturbance and if any potential archeological resources are discovered, will immediately cease construction in that area and notify the State and FEMA.